

provider had an opportunity to observe a condition or even possessed sufficient expertise to recognize a possible design defect does not create a legal duty to inspect, discover, or warn of defects it neither created nor controlled. Were the rule otherwise, every mechanic, installer, subcontractor, or repair technician would become the guarantor of every manufacturer's design decisions simply because they happened to work near the allegedly defective component. California law imposes no such sweeping obligation.

Accordingly, the Court GRANTS the motion on this issue as Plaintiff has failed to establish a triable issue. Plaintiff seeks to impose a duty on NFS to warn of defects that Plaintiff's own expert attributes exclusively to other entities. A defendant cannot be liable for failing to warn of dangers it did not create, did not control, and had no duty to inspect.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2303819	MURILLO VS INNOVATIVE HORIZONS CHARTER SCHOOL	MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO FORM INTERROGATORIES, SET ONE

Tentative Ruling: The Court CONTINUES Defendant's Unopposed Motion to Compel Further Responses to Form Interrogatories, Set One, to October 6, 2026, at 8:30 a.m., due to insufficient meet-and-confer efforts. Defendant shall file and serve a declaration at least 10 days before the continued hearing date, detailing the meet-and-confer efforts and delineating what, if any, issues remain.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2303819	MURILLO VS INNOVATIVE HORIZONS CHARTER SCHOOL	MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET ONE

Tentative Ruling: The Court takes this motion off calendar without prejudice. The Court's May 28, 2026, order explicitly identified the deficiency in the Ter-Mambreyan Declaration: no showing of compliance with the statutory requirement to meet and confer in person, by telephone, or by videoconference. The Court ordered AFSC to file and serve a declaration detailing the meet-and-confer efforts at least 10 days prior to the continued hearing. The Court specifically warned that continued non-compliance may result in the Court taking the matter off calendar.

AFSC did not file the ordered supplemental declaration by June 28, 2026 (ten days before the July 8 hearing) addressing the deficiency. AFSC filed a reply on June 30, 2026, but that reply does not include a supplemental declaration addressing the meet-and-confer requirement.